County Administration Workshop: March 24, 2026
1:30 p.m. – Board of Commissioners Conference Room
Attending: Commissioners Ron Smith; Colene Martin; Gary Richardson; and Nikole Guzman, Recorder

Chair Ron Smith called the meeting to order at 1:30 p.m.

1. **Declaration of Potential Conflicts of Interest**

Each Commissioner present reviewed the agenda. It was determined that there were not any conflicts on today's agenda.

2. **Department Business**
   a. **Legal Counsel**
      1. **Purchase and Sale Agreement for 715 NW Dimmick**

Helene Lulich, County Real Property Manager, presented documentation related to the Purchase and Sale Agreement for 715 NW Dimmick. Ms. Lulich explained that the Board had previously authorized counter offers, which had since been accepted by the buyer. The documents before the Board included both the finalized agreement and an addendum extending the acceptance period, which had technically lapsed but required formal ratification to proceed with escrow and title processing. Discussion clarified that the current action was largely administrative in nature, intended to memorialize prior Board direction and allow the transaction to move forward through escrow. *Commissioner Martin made a motion for the Purchase and Sale Agreement and Addendum for 715 NW Dimmick. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – no. Motion carried 2-1.*

      2. **Purchase and Sale Agreement for 700 NW Dimmick**

Ms. Lulich presented a similar set of documents for the property located at 700 NW Dimmick. She explained that although the two properties were negotiated concurrently, they remain separate transactions and must be approved independently. The Board discussed whether approval of one agreement would obligate approval of the other, and it was clarified that each contract stands on its own. As with the prior item, the purpose of the action was to formalize documentation already negotiated and enable the County to proceed with escrow and title work. *Commissioner Martin made a motion for the Purchase and Sale Agreement and Addendum for 715 NW Dimmick. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – no. Motion carried 2-1.*

ADDITIONAL DISCUSSION – 210 Tacoma Property
At the request of the Commissioner Martin, Ms. Lulich provided an update regarding the property located at 210 Tacoma. She reported that escrow had been opened and a deposit received, and that the transaction was progressing. She further explained that a lot line adjustment was currently underway to separate a portion of the property, with anticipated Board action in the coming weeks. Additionally, Ms. Lulich presented a proposed 30-day termination notice related to an existing lease agreement associated with the property. The Board discussed whether formal action was required or if direction could be given without objection. Legal Counsel recommended formal authorization to ensure clarity and proper documentation. *Commissioner Richardson made a motion to Authorize the Property Manager to issue a notice of lease termination for 210 Tacoma. The motion was seconded by Commissioner Martin. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0*

      3. **Order No. 2026-012; In the Matter of the Transfer of County Real Property to the City of Cave Junction, Oregon**

Ms. Lulich presented a Board Order and quitclaim deed related to a parcel located at 250 E. Hamby Lane, which had been acquired by the County through tax foreclosure. She explained that the property had originally been designated as a detention pond for development and should have been transferred to the City of Cave Junction, but it was not. Upon learning of its intended use, staff determined that the property was not suitable for sale due to associated maintenance and liability concerns. The proposed action would transfer the property

to the City to correct the historical oversight. The Board discussed the background and agreed that the item should proceed to a Weekly Business Session for formal action and public consideration.

4. Order No. 2026-010; In the Matter of Josephine County Administrative Policy H-03; News Media Attendance

Wally Hicks, County Legal Counsel, presented a revised administrative policy establishing guidelines for identifying accredited representatives of the news media, particularly for purposes of executive session attendance. Mr. Hicks explained that while such a policy is not strictly required by law, it is strongly recommended to ensure consistency, transparency, and compliance with Oregon Public Meetings Law. The Board engaged in discussion regarding the evolving nature of media, including the challenges of distinguishing between traditional institutional press and individuals publishing through digital platforms. Commissioners noted the importance of maintaining the integrity of executive sessions while also ensuring fair and consistent access. Additional discussion focused on whether further outreach to media organizations was necessary prior to adoption. After discussion, the Board determined that the policy was sufficiently developed to move forward. *Commissioner Richardson made a motion for the Order No. 2026-010; In the Matter of Josephine County Administrative Policy H-03; News Media Attendance. The motion was seconded by Commissioner Martin. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

5. Evergreen Federal Bank v. Josephine County, Oregon; and 2 Guys 1 Truck, LLC, an Oregon Limited Liability Company

Legal Counsel presented correspondence and background related to a dispute involving economic development funds and a request for payment from Evergreen Federal Bank. Mr. Hicks explained that the situation involved an applicant whose documentation may not have fully complied with program requirements tied to Oregon Lottery funding, thereby raising compliance and audit concerns. The Board discussed the importance of ensuring that all program requirements are satisfied prior to disbursement of funds, particularly given the potential for state audit review. Commissioner Martin indicated that she had been working directly with the applicant and finance staff to resolve deficiencies through an amendment or addendum to the original application. Additional discussion addressed internal financial controls, including the authority to stop payment on previously authorized funds if compliance concerns arise. Legal Counsel clarified that County staff have an obligation to prevent improper disbursement of public funds and that such actions should be communicated back to the Board for transparency. Board directed staff to continue working with the applicant to bring documentation into compliance. No formal action taken.

6. 2025 Budget Officer Contract

Mr. Hicks, presented information regarding a contract for budget officer services that had ended prematurely following the contractor's resignation. The Board reviewed the circumstances surrounding the resignation and the lack of completed deliverables under the contract. Discussion focused on ensuring accountability for contracted services and appropriate closure of the matter. *Commissioner Richardson made a motion for the staff to send the Letter to Mr. Hare regarding his resignation to his contract. The motion was seconded by Commissioner Smith. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

7. Annual Records Disposition Process

Commissioner Richardson raised concerns regarding records retention practices across County departments, noting that some records were being retained beyond statutory requirements and potentially creating unnecessary liability. He emphasized the importance of implementing a consistent and legally compliant records disposition process. Discussion included the need for coordination between departments, legal review for pending litigation holds, and the potential for establishing an annual County-wide records disposition schedule. Board directed staff, including Legal Counsel and Human Resources, to develop an updated administrative policy and standardized process. Approved without objection.

b. Public Health

1. Local Health Assessment

Michael Derossett, representing Public Health, presented a contract for completion of the County's Local Health Assessment, a required deliverable under the Public Health Modernization Grant. Mr. Derossett explained that the assessment is one of several components tied to ongoing state funding and is fully covered by grant resources, requiring no additional County funds. He provided detailed context regarding the purpose of the assessment,

noting that it evaluates current community health needs, demographic trends, and service gaps. He highlighted several key population factors influencing the need for updated analysis, including a growing population of residents aged 65 and older, a higher-than-average veteran population compared to statewide figures, increasing diversity within the Hispanic and Latino community, and rising disability rates. Mr. Derossett further explained that the selected contractor (Exhibit A) specializes in Public Health Accreditation Board (PHAB) standards, which would allow the County to leverage the assessment data toward future accreditation efforts. He noted that while both vendor proposals were similar in cost, Exhibit A provided additional long-term value through its expertise and alignment with accreditation requirements. The Board discussed the benefits of having updated, data-driven insight into community needs, as well as the potential consequences of failing to complete required deliverables, including the possible loss of grant funding. It was confirmed that the Oregon Health Authority had granted an extension on the timeline due to prior delays, and that the assessment is expected to be completed by mid-year. *Commissioner Martin made a motion for the approval of the Contract Exhibit A to start the work. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

c. Forestry

1. Extension of Suspension of Order 2025-012; In the Matter of Acceptance of Applications for Mineral Exploration and Mining Leases

David Streeter, Forestry Director, presented a request to extend the current suspension of Order 2025-012, which relates to the acceptance of applications for mineral exploration and mining leases on County-owned lands. Mr. Streeter explained that the existing ordinance has presented legal vulnerabilities and has contributed to ongoing litigation, prompting the need for further review and potential revision. He noted that previous efforts to revise the ordinance involved both legal counsel and the Mining Advisory Committee; however, those efforts have not resulted in consensus, with differing perspectives on how the ordinance should balance County protections and industry interests. Mr. Streeter emphasized that continuing to accept applications under the current framework could expose the County to additional legal risk. The Board engaged in discussion regarding whether to revise the ordinance or eliminate it altogether in favor of a case-by-case review process. Commissioners expressed concern about repeatedly extending the suspension without making a definitive policy decision, while also acknowledging the need to avoid premature action while legal and policy considerations remain unresolved. Ultimately, the Board agreed that a short-term extension would allow time for further coordination between Forestry, Legal Counsel, and potentially outside consultants, while maintaining protection against new applications during that period**.** *Commissioner Richardson made a motion to Extend the suspension of Order 2025-012; In the Matter of Acceptance for Mineral Exploration and Mining Leases retro active to todays date and three months forward. The motion was seconded by Commissioner Martin. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

2. Amendment No. 1 to Planting Contract 2026PL-2

Mr. Streeter presented Amendment No. 1 to Planting Contract 2026PL-2, explaining that the amendment reflects the purchase of additional surplus seedlings that became available and were needed to support reforestation efforts on underperforming sites. He noted that while the initial contract covered planned planting areas, the acquisition of additional seedlings necessitated expanded planting services and corresponding contract adjustments. Mr. Streeter also addressed budget considerations, acknowledging that while efforts are being made to remain within the existing budget, there is a possibility of exceeding initial projections due to the increased scope of work. He explained that Forestry staff are actively tracking expenditures and adjusting operations where possible to minimize overages, though limitations in the County's financial reporting system create a delay in obtaining real-time budget data. The Board discussed the importance of completing planting efforts in a timely manner, particularly given seasonal constraints and the risk of reduced survival rates if planting is delayed or weather conditions become unfavorable. Commissioners recognized that while there is inherent uncertainty in forestry operations, proactive planting remains essential for long-term resource management and revenue generation. *Commissioner Martin made a motion to approve Amendment No. 1 to Planting*

Contract 202PL-2. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.

d. Public Works

1. WECO invoice in the Amount of $44,3377.72

Richard Pike, Public Works Manager, presented an invoice for fuel purchases totaling $44,377.72. Mr. Pike explained that the invoice primarily reflects diesel and unleaded fuel used in ongoing County operations and noted that such expenses are recurring and subject to market fluctuations. The Board acknowledged that fuel costs represent a significant and ongoing operational expense and discussed the broader financial implications of fuel price volatility. Mr. Pike provided additional information regarding potential strategies to manage this volatility, including the option of entering into fuel price hedging agreements for diesel. He explained that while hedging could provide budget certainty, it also carries risk, particularly if market prices decline after a fixed rate is established. Commissioners engaged in discussion regarding the purpose of hedging, emphasizing that its value lies in creating predictable budgeting conditions rather than attempting to forecast market trends. It was noted that other industries, such as airlines, commonly hedge a portion of their fuel costs to mitigate financial risk. The Board expressed interest in further evaluating this option but requested additional data, including historical pricing trends and projected budget impacts. Board directed staff to gather additional information and return for further discussion on fuel hedging strategies.

2. Amendment No. 1 to the Agreement No. 730-00014156 with Oregon Department of Transportation, Wolf Creek (Lower Grave Creek Rd) Bridge No. 33C01

Mr. Pike presented Amendment No. 1 to an agreement with the Oregon Department of Transportation related to the Wolf Creek (Lower Grave Creek Road) Bridge project. He explained that the amendment reflects updates to the existing agreement, allowing the County to continue coordination with ODOT on project implementation and funding. The Board discussed the importance of maintaining alignment with state agencies on infrastructure projects and ensuring that agreements remain current to support ongoing work. No concerns were raised regarding the amendment. *Commissioner Martin made a motion to approve the Amendment* No. 1 to the Agreement No. 730-00014156 with Oregon Department of Transportation, Wolf Creek (Lower Grave Creek Rd) Bridge No. 33C01. *The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

e. Community Justice

1. Board Order No. 2026-013; In the Matter of Delegating Contract Signing Authority for Certain State and Intergovernmental Agreements and Amendments to the Josephine County Prevention and Treatment Program Manager

Scott Hyde, Community Justice Director, presented a Board Order to delegate contract signing authority to the Prevention and Treatment Program Manager. Mr. Hyde explained that the purpose of the delegation is to streamline administrative processes, particularly for state and intergovernmental agreements, while maintaining appropriate oversight within the department. The Board discussed the balance between efficiency and accountability, noting that delegation of authority can reduce delays in program implementation while still allowing for internal controls and monitoring. *Commissioner Richardson made a motion for the Board Order No. 2026-013; In the Matter of Delegating Contract Signing Authority for Certain State and Intergovernmental Agreements and Amendments to the Josephine County Prevention and Treatment Program Manager as Amended. The motion was seconded by Commissioner Martin . Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

2. Grant Agreement for Mental Health Services with Options for Southern Oregon

Mr. Hyde presented a grant agreement for mental health services, explaining that the funding would be passed through the County to Options for Southern Oregon to support service delivery. He noted that the grant represents a significant funding opportunity and is aligned with ongoing efforts to address behavioral health needs in the community. The Board discussed the importance of ensuring that funds are properly administered and that services reach intended populations. *Commissioner Martin made a motion for the Grant Agreement for Mental Health Services with Options for Southern Oregon. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

3. Amendment No. 1 to Options for Southern Oregon

Mr. Hyde presented an amendment related to insurance and liability coverage for Options for Southern Oregon. He explained that the amendment ensures appropriate tort liability protections are in place as part of the service agreement. *Commissioner Martin made a motion to approve Amendment* No. 1 to Options for Southern Oregon. *The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

4. Opioid Settlement Funding Report

Shawn Martinez provided an update regarding opioid settlement funding. The presentation included an overview of funding allocations and ongoing program consideration.

f. Human Resources

1. Personnel Requisitions
    a. Emergency Management, Department Specialist, Add Position asked to table this matter for further research and discussion.
    b. Juvenile Justice, Group Life Counselor I/II, Refill Vacated Position
    c. Juvenile Justice, Youth Care Coordinator, Refill Part-Time Vacated Position
    d. Public Health, Registered Nurse – Jail Clinic, Refill Vacated Position
    e. Public Works, Vehicle Service Worker, Replace Existing Classification
    f. Veterans Services, Department Assistant, Add One Part-Time Temporary Position

Michelle Shaw, Human Resources Director, presented multiple personnel requisitions across several departments. She explained that the requests included a combination of refilling vacant positions, adding new roles, and adjusting classifications to meet operational needs. The Board discussed the Emergency Management position in greater detail and determined that additional research and discussion were necessary before proceeding. As a result, that item was tabled. The remaining requisitions were considered routine and necessary for maintaining departmental operations. During discussion, the Board also considered the need for interim leadership within Emergency Management.

Commissioner Martin made a motion to approve Dave Daniel- Interim Emergency Services Manager. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.

3. BOARD BUSINESS

A. Dunn Carney LLP Invoice in the Amount of $38,308.00

The Board reviewed an invoice from Dunn Carney LLP in the amount of $38,308.00. Discussion was limited, and the expense was recognized as a necessary legal cost associated with County operations. Board approved without objection.

B. Advisory Committee Applications

Tamra Martin discussed her process for vacancies with the Fair board. And discussed the Parks Advisory Board and is asking the Board to bring the Parks Advisory Board back. A Board Order will be needed to bring it back. The Board directed staff to move forward with this matter.

4. OTHER

The Board discussed the potential restructuring of meeting schedules, including separating meetings with Legal Counsel to Thursdays while maintaining Administration Workshops on Tuesdays. The discussion was preliminary, and no formal action was taken.

5. ADDITIONAL SUBJECT MATTERS FROM COMMISSIONERS/ANNOUNCEMENTS:

None

The meeting adjourned at 3:36 p.m.